

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 6/26/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 8	26CV483689	Silicon Valley Taxpayers Association, Inc. Et al vs County of Santa Clara	Demurrer Please Ctrl Click (or scroll down to) Line 8
LINE 9	26CV485647	Orchard Yield Funds, LLC vs Park Capital Management, LLC	Motion to Expel Respondent Please Ctrl Click (or scroll down to) Line 9

Calendar Line 1

Case Name: *Sophie Yeh v. The Harker School, et al.*

Case No.: 23CV418929

PLAINTIFF’S MOTION TO SEVER

Plaintiff moves to sever Defendant The Harker School’s (“THS”) cross-complaint against Commercial Tree Care (“CTC”) pursuant to Code of Civil Procedure sections 1048 and 598. The motion is denied as to severance, but granted in part as to bifurcation of trial issues.

Code of Civil Procedure section 1048, subdivision (b), authorizes the Court to order separate trials of claims or issues “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy.” Section 598 similarly permits the Court to order the sequence of trial issues where necessary to promote convenience, judicial economy, or the ends of justice. These provisions confer broad discretion to structure trial proceedings involving overlapping claims. (See *Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266; *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496; *Pilliod v. Monsanto Co.* (2021) 67 Cal.App.5th 591.)

Here, Plaintiff’s complaint and THS’s cross-complaint arise from a single occurrence—the March 21, 2023 tree failure incident—and involve overlapping factual questions concerning the condition of the subject tree, inspection practices, and the scope and adequacy of Commercial Tree Care’s involvement. The Court previously permitted the filing of the cross-complaint and continued trial, recognizing that the claims arise from common operative facts and that a single proceeding would promote efficiency and avoid duplication of testimony.

The Court finds that complete severance is not warranted. The claims share substantial factual overlap, including witnesses and evidence concerning inspection, maintenance, and tree risk assessment. Severance would result in duplication of evidence, inconsistent presentation of overlapping issues, and inefficiency contrary to the purposes of sections 1048 and 598.

However, the Court is persuaded that limited bifurcation is appropriate to reduce the risk of juror confusion and to ensure orderly presentation of issues. Although evidence of CTC’s conduct will necessarily be relevant to Plaintiff’s negligence theory against THS, the distinct nature of THS’s indemnity, contribution, and contract-based claims against CTC warrants separation of those issues from Plaintiff’s claims for trial management purposes.

Accordingly, the Court orders as follows pursuant to Code of Civil Procedure section 598:

1. Phase One: Trial of Plaintiff’s claims against THS, including liability and damages; and
2. Phase Two (if necessary): Trial of THS’s cross-claims against CTC for indemnity, contribution, breach of contract, negligence, and related relief.

This structure allows Plaintiff’s claims to be presented without the added complexity of defendant-versus-defendant allocation and contract issues, while preserving THS’s ability to fully litigate its cross-claims in a subsequent phase if required.